

Court No. - 29

Case :- WRIT - C No. - 40141 of 2018

Petitioner :- Radha Rani

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dinesh Mishra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Pankaj Bhatia,J.

Heard learned counsel for the petitioner and learned counsel for the respondents.

On account of alleged charge of theft of electricity, the petitioner was assessed vide order dated 19.3.2018 and demand of electricity dues has been raised against her.

The submission of learned counsel for the petitioner is that in an investigation regarding theft of electricity, a final report was submitted by the police and the same has already been accepted by the Court on 14.7.2018. Even the Executive Engineer has admitted that there is no objection by the department if the report is accepted.

In view of the above, the realization of any electricity dues on account of theft of electricity is not justified.

Learned counsel appearing on behalf of respondent Nos. 2 and 3 has accepted notice and he prays for and is allowed three weeks time for filing counter affidavit. One week time is granted to learned counsel for the petitioner for filing rejoinder affidavit thereafter.

List for admission/ final dismissal immediately after a month.

Until further order of this Court realization of any amount pursuant to the final assessment order dated 19.3.2018 shall remain in abeyance.

It will be open for the petitioner to move appropriate application in accordance with Section 8.2(X)(g) of the Electricity Supply Code, 2005 for the closer of all proceedings in view of the acceptance of the final report by the Court.

Order Date :- 6.12.2018

C. MANI

Court No. - 3

Case :- WRIT - C No. - 40141 of 2018

Petitioner :- Radha Rani

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dinesh Mishra

Counsel for Respondent :- C.S.C.,Ankit Saran,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Passed over on the request of learned counsel for the petitioner.

Order Date :- 5.8.2021

S.Chaurasia